

The Industrial Tribunal (Central Procedure) Rules, 1954

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The Industrial Tribunal (Central Procedure) Rules, 1954

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The Industrial Tribunal (Central Procedure) Rules, 1954

Rule THE-INDUSTRIAL-TRIBUNAL-CENTRAL-PROCEDURE-RULES-1954 of 1954

Published on 27 May 1954

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The Industrial Tribunal (Central Procedure) Rules, 1954

Published Vide Notification S.O.R. 1793, dated, 27-5-1954, published in the Gazette of India, Extraordinary Part 2, Section 3, page 925, dated 27-5-1954.

13.

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S.O.R. 1793, dated, 27th May, 1954. - In exercise of the powers conferred by section 38 of the Industrial Disputes Act, 1947 (14 of 1947), the Central Government makes the following rules, the same having been published as required by sub-section (1) of the said section, namely :-

1.

- These rules may be called The Industrial Tribunal (Central Procedure) Rules, 1954.

2.

- In these rules-

(a)

"the Act "means the Industrial Disputes Act, 1947 (14 of 1947

);

(b)

"Chairman "means the Chairman of the Tribunal;

(c)

"member "means a member of the Tribunal;

(d)

"section "means a section of the Act;

(e)

"Tribunal "means the Industrial Tribunal constituted under section 7 consisting of two or more members.

3.

[

[Substituted by S.O.R. 3534, dated 1.12.1954.]

- In the case of a Tribunal where it consists of two or more members, the Chairman may sit alone or with one or more members to hear an application or complaint in writing under section 33 or section 33-A, as the case may be, for inquiry and report to the Tribunal or entrust any such application or complaint to one or more members, as he deems fit, for such enquiry and report.

4.

- The Chairman may withdraw any case or matters referred to one or more members, under rule 3 and transfer the same to himself or any other member or members.

5.

- The report under rule 3, where the enquiry is made by one or more members, shall be submitted to the Chairman and where the enquiry is by the Chairman sitting alone or with one or more members, the report shall be submitted to the Tribunal:

Provided that in all cases, the final order on such application or complaint shall be passed by the Tribunal after taking into consideration the report submitted to it by the Chairman sitting singly or with one or more members or by any other member or members.

6.

- The Tribunal shall, after considering the report submitted to the Chairman under rule 5 and making such further enquiry, if any, as it thinks fit, give its decision or award as the case may be.

7.

[

[Substituted by S.O.R. 3534, dated 1.12.1954.]

- For the purposes of making an enquiry under these rules the Chairman or member or members, as the case may be, shall have all the powers of the Tribunal under section 11 and the provisions of rules 14 to 21, 24, 30 and 31 of the Industrial Disputes (Central) Rules, 1947, shall apply to such enquiry as if the Chairman or member or members by themselves constituted the Tribunal.]

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